

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW,
AVERS LOGISTICS LTD,
CJ DELUZ NIGERIA LTD.

Complainants,

vs.

ALLA SOLOVYEVA,
RAYA BAKHIREV.

RESPONDENTS'
PROPOSED
FINDINGS OF FACT

Respondents.

1. The following 12 of the 17 subject vehicles have been in storage for more than three years before the above-captioned matter was filed on July 17, 2020: Vin#s (last 4 digits): 7130, 1344, 0283, 3906, 9803, 2288, 1102, 2140, 5968, 6626, 2708, and 0845. (Respondent's Exhibit #5, pages 1-2).
2. On May 5, 2017, MTL wrote to Complainants, and Complainants received such: "Chinedu, This is our storage policy, 30 days free if you ship with us. I need to get your confirmation ASAP, or we are not loading on Monday." *Id.* at 10.
3. Complainants received Invoice #77411 as to subject vehicle with a Vin# ending in 6538. (Respondent's Exhibits "1" and "2", page 25).
4. Complainants did not pay for the Invoice #77411, and Complainants never provided any proof of payment for such.
5. Complainants received Invoice #83489 as to subject vehicle with a Vin# ending in 9422, 1102, 0845, 3906, and 7319. (Respondent's Exhibits "1" and "2", page 4).
6. Complainants did not pay for the Invoice #83489, and Complainants never provided any proof of payment for such.
7. As to the subject vehicle with a Vin # ending in 9422, Complainants received Invoice #147122 for warehouse storage in the amount of \$1,840. (Respondent's Exhibit #1, and #2, page 7).
8. Complainants did not pay for the Invoice #147122, and Complainants never provided any proof of payment for such.

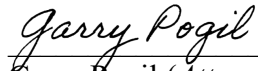
9. As to the subject vehicle with a Vin # ending in 1102, Complainants received Invoice #82149 for warehouse storage in the amount of \$4,300. (Respondent's Exhibit #1, and #2, page 10).
10. Complainants did not pay for the Invoice #82149, and Complainants never provided any proof of payment for such.
11. As to the subject vehicle with a Vin # ending in 0845, Complainants received Invoice #82150 for warehouse storage in the amount of \$2,960. (Respondent's Exhibit #1, and #2, page 9).
12. Complainants did not pay for the Invoice #82150, and Complainants never provided any proof of payment for such.
13. As to the subject vehicle with a Vin # ending in 3906, Complainants received Invoice #82148 for warehouse storage in the amount of \$4,310. (Respondent's Exhibit #1, and #2, page 11).
14. Complainants did not pay for the Invoice #82148, and Complainants never provided any proof of payment for such.
15. As to the subject vehicle with a Vin # ending in 7319, Complainants received Invoice #82151 for warehouse storage in the amount of \$2,130. (Respondent's Exhibit #1, and #2, page 8).
16. Complainants did not pay for the Invoice #82151, and Complainants never provided any proof of payment for such.
17. As to the subject vehicle with a Vin # ending in 6993, Complainants received Invoice #82085 for warehouse storage in the amount of \$2,680. (Respondent's Exhibit #1, and #2, page 18).
18. Complainants did not pay for the Invoice #82085, and Complainants never provided any proof of payment for such.
19. As to the subject vehicle with a Vin # ending in 2708, Complainants received Invoice #82086 for warehouse storage in the amount of \$3,290. (Respondent's Exhibit #1, and #2, page 17).
20. Complainants did not pay for the Invoice #82086, and Complainants never provided any proof of payment for such.
21. As to the subject vehicle with a Vin # ending in 6626, Complainants received Invoice #82145 for warehouse storage in the amount of \$3,430. (Respondent's Exhibit #1, and #2, page 14).

22. Complainants did not pay for the Invoice #82145, and Complainants never provided any proof of payment for such.
23. As to the subject vehicle with a Vin # ending in 5968, Complainants received Invoice #82087 for warehouse storage in the amount of \$3,650. (Respondent's Exhibit #1, and #2, page 16).
24. Complainants did not pay for the Invoice #82087, and Complainants never provided any proof of payment for such.
25. As to the subject vehicle with a Vin # ending in 2288, Complainants received Invoice #82147 for warehouse storage in the amount of \$4,310. (Respondent's Exhibit #1, and #2, page 12).
26. Complainants did not pay for the Invoice #82147, and Complainants never provided any proof of payment for such.
27. As to the subject vehicle with a Vin # ending in 9803, Complainants received Invoice #82088 for warehouse storage in the amount of \$4,620. (Respondent's Exhibit #1, and #2, page 15).
28. Complainants did not pay for the Invoice #82088, and Complainants never provided any proof of payment for such.
29. As to the subject vehicle with a Vin # ending in 0283, Complainants received Invoice #82153 for warehouse storage in the amount of \$4,320. (Respondent's Exhibit #1, and #2, page 6).
30. Complainants did not pay for the Invoice #82153, and Complainants never provided any proof of payment for such.
31. As to the subject vehicle with a Vin # ending in 1344, Complainants received Invoice #82146 for warehouse storage in the amount of \$4,550. (Respondent's Exhibit #1, and #2, page 13).
32. Complainants did not pay for the Invoice #82146, and Complainants never provided any proof of payment for such.
33. As to the subject vehicle with a Vin # ending in 7130, Complainants received Invoice #82154 for warehouse storage in the amount of \$4,390. (Respondent's Exhibit #1, and #2, page 3).
34. Complainants did not pay for the Invoice #82154, and Complainants never provided any proof of payment for such.

35. As to the subject vehicle with a Vin # ending in 2140, Complainants received Invoice #82084 for warehouse storage in the amount of \$4,190. (Respondent's Exhibit #1, and #2, page 19).
36. Complainants did not pay for the Invoice #82084, and Complainants never provided any proof of payment for such.
37. As to the subject vehicle with a Vin # ending in 2942, Complainants received Invoice #78952 for warehouse storage in the amount of \$2,240. (Respondent's Exhibit #1, and #2, page 23).
38. Complainants did not pay for the Invoice #78952, and Complainants never provided any proof of payment for such.
39. Complainants acknowledge that they received all of the documents contained in Respondent's Exhibit #1.
40. Subject vehicle (last four of Vin#3906) is a fair and accurate representation of the photograph that appears on page 55 of Respondent's Exhibit #6.
41. Subject vehicle (last four of Vin#3906) appears on Invoice #83486 (Respondent's Exhibit #2, page 4). The same invoice also contains a charge for "cutting and dismantling."
42. Looking at the photograph of the subject vehicle referenced in #40 above, Complainants were aware that cutting and dismantling meant that any dangling auto parts would have to be cut to enable a safe transportation.
43. Complainants never came to inspect any of the vehicles that arrived at their destination, which were subject of Invoice #83486, and Complainants refused to clear such vehicles even though advised to do so. (Respondent's Exhibit #7).
44. Complainant, Mr. Chinedu, was advised by Andre Bou Jaoude, that the vehicles that are the subject of Invoice #83486 had arrived at destination.
45. Since Complainants never appeared to view the subject vehicles referenced in #43 above, they have no firsthand knowledge as to what "cutting and dismantling" meant. Complainants only saw such statement on the invoice.
46. Complainants' counsel, Mr. Nussbaum, without obtaining any authorization for such, began to contact Andre Bou Jaoude and threatened him with legal action. (Respondent's Exhibit #13).
47. On June 28, 2018, MTL wrote to the Complainant, Mr. Chinedu, and advised him that his vehicles are ready for pickup. (Respondent's Exhibit #13).

48. Complainants wrote to MTL on June 29, 2018 requesting MTL to stop contacting him. (Respondent's Exhibit #13).
49. Complainants received invoices that appear in Respondents' exhibits 11 and 12.
50. On December 15, 2017 and on February 6, 2018, MTL advised Complainants that they have to resolve the issue of long outstanding storage and then services will continue with if the freight and loading will be prepaid. (Respondent's Exhibit #5, pages 53 and 69).
51. MTL has always waited for Complainants to authorize application of any of their funds to any outstanding charges. (Respondent's Exhibit #14).
52. Complainants are a professional custom clearing agent. (Respondent's Exhibit #15).
53. On April 18, 2017, Complainants were emailed a written storage policy of MTL. (Respondent's Exhibit #16).
54. Complainants never produced any of the Facebook posts concerning Respondent's Exhibit #17.

Dated: September 28, 2021



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